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X, formerly Twitter, sues California over content moderation law

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X, the site formerly known as Twitter, sued the state of California Friday over a law passed last year requiring social media companies to divulge their terms of service, including how they moderate content on their sites.

The lawsuit claims the law, authored by Assembly Member Jesse Gabriel, violates the company's freedom of speech, while Gabriel said the law is designed to increase transparency around an important topic.

Lawyers for X alleged in a lawsuit brought in federal court in Sacramento that the law, AB587, violates the First Amendment of the U.S. Constitution and the state Constitution. They argued the law: "compels companies like X Corp. to engage in speech against their will, impermissibly interferes with the constitutionally-protected editorial judgments of companies such as X Corp., has both the purpose and likely effect of pressuring companies such as X Corp. to remove, demonetize, or deprioritize constitutionally-protected speech that the State deems undesirable or harmful, and places an unjustified and undue burden on social media companies such as X Corp."

Since Elon Musk took over the company last year, hate speech has been increasing on the site, according to some studies, alarming lawmakers and other groups concerned about the harm unchecked hate speech could create.

Musk, a self-proclaimed "free speech absolutist," has taken an, at times, shoot-from-the-hip approach to content on the site, reinstating the previously banned accounts of Donald Trump, conspiracy theorists and neo-Nazis. He also banned an account that tracked his private jet, and journalists that covered the episode, although some were later reinstated.

In a statement, Gabriel said the law "is a pure transparency measure that simply requires companies to be upfront about if and how they are moderating content. It in no way requires any specific content moderation policies — which is why it passed with strong, bipartisan support," Gabriel said.

"If Twitter has nothing to hide, then they should have no objection to this bill," Gabriel added, noting in his statement that the bill faced opposition from social media companies and took two years to ultimately pass.

The lawsuit takes umbrage with the idea that the law's only goal is transparency, however.

The true intent of the law "is to pressure social media platforms to 'eliminate' certain constitutionally-protected content viewed by the State as problematic," the suit said, quoting Gabriel as saying the law was a first step in fighting back against divisive rhetoric online as proof that the law's real goal, "is to pressure social media companies to eliminate or minimize content that the government has deemed objectionable."

Lawyers also argued that it would be akin to requiring newspaper publishers to divulge how they make decisions about what to publish or not.

The suit further alleged that by being forced to divulge how it handles delicate content moderation decisions, the company is being strong-armed into "(taking) public positions on controversial and politically charged issues," therefore it is "being forced to adopt the State's politically-charged terms, which is a form of compelled speech in and of itself."

California Attorney General Rob Bonta's office, named as the defendant in the case, said it had not yet been served with the complaint, adding, "we will review it and respond in court."

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